

25SMCV04454 25SMCV04454

County: los-angeles

Division: Civil Law and Motion

Department: N

Hearing date: 2026-09-18

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SM%20%2CN%2C09%2F18%2F2026

Source SHA-256: 42ac78e78710f928cd5315ee428787cd673d8c4bb3730b79fbfdf4e4dcc759ca

Case Number: 25SMCV04454 Hearing Date: September 18, 2026 Dept: N

TENTATIVE RULING

Defendants' Motion for an Order to Compel Responses to Request for Document Production, Answers to Interrogatories and for Sanctions is DENIED without prejudice.

Defendants to give notice.

REASONING

Defendants move for an order compelling Plaintiff's response to Request for Document Production, Special Interrogatories, and Form Interrogatories for failure to respond to the discovery propounded on May 20, 2026. Defendants also request monetary sanctions in the amount of \$560.

The Court finds that Defendants have impermissibly combined motions seeking different forms of relief and authorized by different statutes. Combining motions allows the moving party to avoid paying the requisite filing fees. Filing fees are jurisdictional and it is mandatory for court clerks to demand and receive them. (See *Duran v. St. Luke's Hospital* (2003) 114 Cal. App. 4th 457, 460; Gov. Code § 70617(a).) Defendants paid one filing fee for what should have been three separate motions.

The Court further notes that the Motion contains information inconsistent with the allegations in the complaint. For example, the Motion states that the alleged collision occurred on October 25, 2008, rather than August 29, 2023, and that the complaint was filed on October 22, 2010, rather than August 27, 2025. The Court directs Defendants to review the moving papers for accuracy and consistency prior to filing.

For the foregoing reasons, the Motion for an Order to Compel Responses to Request for Document Production, Answers to Interrogatories and for Sanctions filed by Defendants Jasmine Everett Lewis and Austin Everett Lewis is DENIED without prejudice.